

- Sara served Kelly-Lynn with Form Interrogatories (Set One) and Requests for Admissions (RFA) which were answered in or about September 2022 (Allen Decl. ¶ 3);
- Kelly-Lynn served Sara with Form Interrogatories, Set One (39 requests), Requests for Production, Set One (33 requests), Special Interrogatories, Set One (35 requests) and Requests for Admission, Set One (35 requests) which were answered by Sara in or about March of 2023 (Allen Decl. ¶ 4);
- Sara served Plaintiffs with Special Interrogatories, Set One and Requests for Production of Documents, Set One, which were answered by Plaintiffs in or about June 2024 (Allen Decl. ¶ 5);
- Kelly-Lynn served Sara with Requests for Production, Set Two which were responded to in or about May 2024 (Allen Decl. ¶ 6);
- Sara served Kelly-Lynn with RFP, Set Two and Special Interrogatories, Set Two, which were responded to in or about October 2024 (Allen Decl. ¶ 7);
- In September of 2024, Kelly-Lynn served Sara with Special Interrogatories, Set Two (35 requests) and Special Interrogatories to Sara's Ex-Husband, Set One (Allen Decl. ¶ 8.)

Despite engaging in roughly two years of written discovery, neither party appears to have ever noticed or requested the opportunity to take any depositions. While Plaintiffs' counsel asserts, vaguely, that Plaintiffs were unable to conduct discovery while self-represented, this assertion is undermined by the significant discovery that took place prior to self-representation.

The Court finds Plaintiffs have not established good cause to broadly reopen all discovery deadlines based on the continued trial date. However, the opposition does not specifically oppose the taking of depositions or engaging in limited additional discovery on matters which have not previously been addressed or answered.

Accordingly, the motion to reopen discovery is granted, but with limitations. The parties may notice and take party depositions on or before October 1, 2026. No further depositions may be noticed or taken.

The parties may engage in further written discovery but must complete said discovery on or before September 1, 2026. Discovery requests must be limited to matters which have not previously been part of discovery requests and should be limited to no more than ten requests per type of discovery sought.

PHILLIPS v. RADER-COLEMAN, et al.

22CV46116

PLAINTIFFS' MOTION FOR SUMMARY JUDGMENT

Before the Court is a motion for summary judgment or adjudication filed by Plaintiffs Kelly Lynn Phillips ("Kelly Lynn") and Richard Phillips ("Richard")("Plaintiffs")¹ against Defendant Sara Rader-Coleman ("Sara.")

The Court grants the Request for Judicial Notice.

I. Factual Background

This case involves a lengthy dispute over a gravel roadway that traverses over neighboring properties.

Kelly Lynn is the owner of real property in Calaveras County identified as Assessor's Parcel Numbers 012-001-002-000 and 014-002-004-00 ("Phillips Property") (UMF 1.) Sara is the owner of adjacent real property. ("Rader Property.") (UMF 2.)

A public road formerly known as Dorrway Road used to run through both the Phillips Property and the Rader Property until the Board of Supervisors of the County of Calaveras passed and adopted a resolution on April 17, 1967 abandoning that portion of Dorrway Road. (UMF 3.) The road was declared abandoned, subject to the reservation of access rights for public utilities. (*Ibid.*)

In 1981, the prior owners of the Phillips Property – Chester and Juanita Anderson ("Andersons") conveyed a "Grant of Easement" ("Easement") to Sara's grandparents, Jack and Wilberta Rader ("Grandparents.") (UMF 5.) The Easement purported to grant a roadway easement across their property along the road formerly known as Dorrway Road for the benefit of the Rader Property. (*Ibid.*) No easement instrument was ever duly recorded against the Phillips Property; a copy of the alleged document did not appear in the official records until 2013, when it was attached to a probate order. (UMF 7.) However, the Culpers permitted members of the Rader family to use the road, including during a lease of the property to a Rader family member for cattle operations through March of 2017. (UMF 44.) S

Kelly Lynn's parents were Norman and Shirley Culper ("Culpers") who purchased the Subject Property from the Andersons on July 20, 2000. (UMF 8.) The Grant-Deed does not reference the Easement. (UMF 9.) Sara contends that her Grandparents' house numbers were visible on the gate when the Culpers purchased it and that the buildings on the Rader Property were clearly visible at that time. (AMF 1,2.) Sara contends that a

¹ Given the common surnames of the parties, first names are used. No disrespect is intended.